

TENTATIVE RULINGS

DEPT C12

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5212. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department C12 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil

Unlimited and Complex” (“Appearance Procedures”) and “Guidelines for Remote Appearances” (“Guidelines”) also available at <https://www.occourts.org/media-relations/aci.html> will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

**TENTATIVE RULINGS
September 21, 2023**

#	Case Name	Tentative
1	AFC Cal, LLC vs. Pascual 2020-01168103	Plaintiff AFC CAL, LLC Motion To Amend and Correct Judgment Plaintiff AFC CAL, LLC’s motion to amend and correct judgment is GRANTED on the condition that the moving Plaintiff can establish at or before the hearing that the original notice of motion, motion and supporting documents were properly served on Defendant Gabriel Marcelo Pascual dba Central Auto Wholesale on July 12, 2023. According to the proof of service attached to the motion, on July 12, 2023, the notice, motion and supporting documents were served on the interested parties by mail “as stated in the attached mailing list.” Unfortunately, no mailing list was attached. Thus, the court cannot tell whether service was proper. The court has power either on motion of a party or sua sponte to “correct clerical mistakes in its judgment . . . so as to conform to the judgment . . . directed.” (Code Civ. Proc., § 473(d); APRI Ins. Co. v. Super. Ct. (1999) 76 Cal.App.4th 176, 185; see also In re Marriage of Boblitt (2014) 223 Cal.App.4th 104, 1026 [citing Witkin Cal. Proc. (5th ed. 2008) Judgment, §67 for the proposition that “[a] court of general jurisdiction has the power, after final judgment, and regardless of lapse of time, to correct clerical errors or misprisons on its records, whether made by the clerk, counsel, or

		the court itself, so that the records will conform to and speak the truth”].) Where a “clerical error” is shown, the judgment is corrected nunc pro tunc— i.e., the correction dates back to when the judgment was entered. (Ames v. Paley (2001) 89 Cal.App.4th 668, 673; Bell v. Farmers Ins. Exch. (2006) 135 Cal.App.4th 1138, 1144.) Here, Plaintiff moves to amend or correct the judgment to reflect the correct total amount of judgment. In essence, the total judgment amount was a mathematical mistake and the correct total amount should be \$149,857.67, not \$135,531.67. The incorrect total is nothing more than a clerical mistake and therefore, the motion should be granted, provided Plaintiff can show proper service of the motion on Defendant. If Plaintiff cannot establish proper service on Defendant Gabriel Marcelo Pascual dba Central Auto Wholesale on July 12, 2023, the motion is CONTINUED to 11/2/23 at 2PM. Plaintiff is ORDERED to give notice of the continued hearing date, as well as the original notice, motion and all supporting documents within 5 days of this ruling and file a POS re: same not later than 7 days before the continued hearing.
2	American Express National Bank vs. White 2019-01086058	Plaintiff American Express National Bank Motion to Vacate Plaintiff American Express National Bank’s unopposed Motion to Vacate The Conditional Dismissal and for Entry of Judgment Pursuant to CCP 664.6 is GRANTED. In January of 2020, the parties entered in a binding Settlement Agreement which was filed with the court and the court dismissed the case, while retaining jurisdiction pursuant to CCP § 664.6. (ROA 47 & 45; Decl. of Dyle, Ex. A.) Pursuant to the Stipulation, Defendant agreed that she owed \$27,465.64 to Defendant. Should she default on the payments set forth in the Stipulation, Plaintiff was entitled to judgment against Defendant in said amount in addition to costs.

		However, Defendant would be entitled to receive credit for any payments made. Defendant has made payments totaling \$1,200.00 and has defaulted on payments. Pursuant to the Stipulation, Plaintiff sent a cure letter to Defendant on March 10, 2021 and Defendant has not cured her default. Based upon the foregoing, the motion is granted. The dismissal ordered on 1/30/20 is VACATED. Judgment in the amount of \$26,828.64 (\$27,465.64 plus costs of \$563, less credits of \$1,200 in payments made) is entered. Plaintiff to submit a proposed judgment. Plaintiff to give notice.
3	C4 Distribution Co. LLC vs. Spark Enterprises, LLC 2023-01328541	Petitioner C4 Distribution Co. LLC Petition to Confirm Arbitration Award Before the court is Petitioner C4 Distribution Co. LLC's Amended Petition to confirm the May 24, 2023 Arbitration Award against Claimants Spark Enterprises, LLC and RD Lynwood issued by (Ret.) Judge Sundvold. The Petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. (CCP § 1285.) "A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based <i>shall</i> be served in the manner provided in the arbitration agreement for the service of such petition and notice." (CCP § 1290.4 (a) (emphasis added).) If the agreement does not provide the manner in which service of the petition and notice must be made, and the person to be served has previously appeared in the proceeding or has previously been served, service must be made in the manner provided generally for notices and service of papers. (Civ. Proc. Code, § 1290.4, subd. (c).)

		Here, the court has reviewed the parties' Agreement and it does not appear that service by regular mail or email is sufficient. Thus, the petition must be served pursuant to the arbitration agreement; or if the agreement does not provide for the manner of service, service must be made as provided by law for service of summons in an action. (Civ. Proc. Code, § 1290.4.) Additionally, the court has reviewed the Award and it is not clear as to what the \$663,812.02 requested judgment consists of relative to the Award. Petition is ordered to file a supplemental declaration clarifying the requested judgment. The court continues the hearing on this Petition to 11/2/23 at 2PM. Petitioner is ordered to properly and timely serve Respondents/Claimants with the Petition and notice of the new hearing date. Petitioner is ordered to serve notice of this Order.
4	City of Westminster vs. 10451 Schooner Avenue, Westminster, California 92683 2023-01315332	Petitioner City Of Westminster 1. Petition For Order to Abate Substandard Building and Appointment of Receiver 2. Status Conference The Court will hear from the parties re status.
5	City of Westminster vs. Almanza 2023-01304922	Petitioner City Of Westminster Petition For Order to Abate Substandard Building and Appointment of Receiver The Court will hear from the parties re status.
6	David Behar vs. Mercury Insurance Company 2023-01311747	Respondent Mercury Insurance Company Motion to Compel Physical/Mental Examination Respondent Mercury Insurance Company's ("Mercury") Motion to Compel Compliance with

		Demand for Physical Examination is granted. Under Insurance Code section 11580.2, subdivision (o), an insurer “may require the insured, except during periods of hospitalization, to make himself or herself available for a medical examination.” The insured’s failure to comply with the medical examination will result in arbitration proceedings being stayed for at least 30 days following compliance by the insured. (Ins. Code, § 11580.2, subd. (o).) Discovery may be enforced by the court having jurisdiction of any suit filed under section 11580.2. (Ins. Code § 11580.2, subd. (f); <i>Miranda v. 21st Century Ins. Co.</i> (2004) 117 Cal.App.4th 913, 926.) A defendant who has demanded a physical examination may move for an order compelling compliance if the plaintiff has modified the demand or makes an unwarranted refusal to submit to the examination. The motion must accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc. § 2032.250, subd. (a).) Here, Mercury proffers evidence that it properly served Claimant David Behar with a Demand For Physical Examination, noticing Behar’s physical examination for June 19, 2023. Behar did not object to the demand, and did not appear for his June 19th examination. Thereafter, Mercury’s counsel sent a meet and confer letter to Behar’s counsel; among other things, Mercury stated it would file a motion to compel if it did not receive a response from Behar’s counsel. Mercury also re-noticed Behar’s physical examination by serving an amended demand. Behar did not respond to Mercury’s meet and confer letter, and did not file an opposition to this motion. Therefore, the Court orders Claimant David Behar to comply with the Amended Demand for Physical Examination and to appear for the examination noticed for October 2, 2023, at 3:00 pm, at 2720 N. Harbor Blvd., Suite 210, Fullerton, CA 92835. The examination shall be conducted by Eric Lin, MD, who specializes in orthopedic surgery, as further delineated in the amended demand. (ROA 30
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		[Norling Decl. at ¶ 8, Exh. D].) In connection with this motion, monetary sanctions in the reasonable amount of \$1,169, are awarded against Claimant David Behar and his counsel of record, Lawrence Hoodack. (Code Civ. Proc. § 2032.250, subd. (b).) The sanctions are payable to Mercury’s counsel, Bretoi, Lutz & Steele, within 30 days. Mercury shall give notice of the ruling.
7	Erickson vs. Allstate Northbrook Indemnity Company 2023-01328260	Petitioners Alexandre Ohana, Maresha Erickson Petition to Compel Arbitration The petition of petitioners Maresha Erickson and Alexandre Ohana for an order compelling respondent Allstate Northbrook Indemnity Company to arbitrate Petitioners’ underinsured motorist claims is granted. The court appoints as arbitrator the Hon. Christopher Warner. Arbitration of uninsured motorist/underinsured motorist claims is mandated by Insurance Code §11580.2 and by the terms of the automobile liability policy issued by the Respondent under which these claims are being made. The remaining matter appears to be the timing of the arbitration. Petitioners ask that the court order the arbitration to begin within 90 days. Respondent does not indicate a specific timeframe needed, but states it will need a medical examination of each Petitioner and the medical report from the examination. Under Insurance Code §11580.2(o), if certain discovery is not provided, including a claimants submission to medical examinations, within 20 days of request, then “the actual arbitration proceedings shall be stayed for at least 30 days following compliance by the insured.” There is no requirement that discovery be completed prior to the initiation of arbitration.

		Thus, the court grants the petition and orders commencement of the arbitration with the Hon. Christopher Warner within 90 days of 9/21/23 or to a later date if the parties so stipulate in writing.
8	Ford Motor Credit Company LLC vs. Alavicheh 2016-00853275	Petitioner Ford Motor Credit Company LLC Claim of Exemption - Wage Garnishment The Claim of exemption is denied. Judgment Debtor seeks to exempt all of his wages from garnishment. While he filed a Financial Statement, he failed to complete the income and asset portion of the form and otherwise support the amount of his expenses.
9	Forward Financing, LLC vs. Lotus Garments, Inc. 2023-01305487	Petitioner Forward Financing, LLC 1. Petition to Confirm Arbitration Award Respondent Lotus Garments, Inc. 2. Motion to Vacate Before the court is Petitioner Forward Financing, LLC's Petition to confirm the 1/17/23 Arbitration Award and Respondent Lotus Garments, Inc.'s counter-Motion to vacate the Award. A petition to confirm must be served as required by the arbitration agreement or in the same manner as normal service during litigation under Code Civ. Proc., §§ 1010 et seq., or as required for the service of a summons if the respondent has not previously appeared or been served. (Code Civ. Proc., § 1290.4.) A party may request a court to vacate an award by filing a response to an opponent's petition to confirm the award. (Civ. Proc. Code, § 1285.2.) Here, there is no proof of service for either the Petition or Motion showing that individual Respondent Young Yoon was properly served. The court will hear from the parties at the hearing.

10	Pettybridge vs. Quinn 2021-01186883	Plaintiffs Scott Pettybridge, Streetwise Investments LLC Motion for Attorney Fees Plaintiffs motion for attorney's fees is denied. The Court does not take issue with the amount of fees but instead finds them to be reasonable. The Court further finds that the settlement agreement authorizes fees in the event of a successful motion to enforce under CCP 664.6. However, as previously stated in denying ex parte relief, the Court concludes based on prevailing law that it lacks jurisdiction in light of the voluntary dismissal on 6/17/22. The Court acknowledges that the settlement agreement in question anticipated that the Court would retain jurisdiction to enforce per CCP 664.6 and indeed an order was presented to the Court to effectuate this continuing jurisdiction. Unfortunately, the Court has no record of the order being signed. Indeed, there is no record of the settlement or stipulation ever being filed except in conjunction with later proceedings to enforce the settlement and to enter judgment more than a year after the dismissal. It is apparent from the record that the parties informed the Court near or on the date reserved for trial on 4/18/22 that a settlement had been reached and that judicial supervision was contemplated per CCP 664.6. (ROA 91.) The Court's minute order went so far as to say, "<i>this is a Court supervised settlement pursuant to [CCP] 664.6.</i>" In the same breadth the Court set the matter for an OSC re dismissal for 6/20/22 and stated that a failure to appear would result in a dismissal of the entire case. So, there is little doubt that the Court was prepared to retain jurisdiction per CCP
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	664.6 up until 6/20/22. But then without further notice or hearing, and without securing an order for retained jurisdiction notwithstanding dismissal, plaintiff voluntarily dismissed the case on 6/17/22 just days before the OSC hearing. While one might question the underlying logic, the law is somewhat unforgiving when an unqualified dismissal <i>precedes a later request for enforcement</i> under CCP 664.6. As explained: “Voluntary dismissal of an action or special proceeding terminates the court's jurisdiction over the matter. (Conservatorship of Martha P., 117 Cal. App. 4th 857, 867, 12 Cal. Rptr. 3d 142 (4th Dist. 2004)) The result is the court has no power to enforce a settlement agreement after dismissal. (Viejo Bancorp, Inc. v. Wood, 217 Cal. App. 3d 200, 206, 265 Cal. Rptr. 620 (4th Dist. 1989); see also Basinger v. Rogers & Wells, 220 Cal. App. 3d 16, 21, 269 Cal. Rptr. 332 (4th Dist. 1990) [plaintiff's remedy is to move to set aside the dismissal under CCP § 473(b) for mistake, inadvertence, or excusable neglect]) However, Code of Civil Procedure section 664.6 allows the parties to request the court retain jurisdiction to enforce the settlement even after dismissal until performance in full of the terms of the settlement. (CCP § 664.6; Wackeen v. Malis, 97 Cal. App. 4th 429, 439–441, 118 Cal. Rptr. 2d 502 (2d Dist. 2002)) Because of its summary nature, strict compliance with the requirements of section 664.6 is mandated. (J.B.B. Investment Partners, Ltd. v. Fair, 232 Cal. App. 4th 974, 984, 182 Cal. Rptr. 3d 154 (1st Dist. 2014)) A request for the trial court to retain jurisdiction
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		under section 664.6 must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety, (2) by the parties themselves, and (3) either in a writing signed by the parties or orally before the court. (Mesa RHF Partners, L.P. v. City of Los Angeles, 33 Cal. App. 5th 913, 917, 245 Cal. Rptr. 3d 512, 515 (2d Dist. 2019) [request must be by the parties themselves, not by their attorneys of record, their spouses, or other such agents]) The request must be express, not implied from other language, and it must be clear and unambiguous. (Wackeen v. Malis, 97 Cal. App. 4th 429, 440, 118 Cal. Rptr. 2d 502 (2d Dist. 2002)) For further discussion see this book, at § 2:73§ 2:73. Although the scope of a court's retention of jurisdiction under Code of Civil Procedure section 664.6 is undoubtedly limited, it is broader than what typically remains following entry of a judgment, and includes the court's equitable authority. (Lofton v. Wells Fargo Home Mortgage, 230 Cal. App. 4th 1050, 1061–1062, 179 Cal. Rptr. 3d 254 (1st Dist. 2014)) Caution Parties may not confer jurisdiction on a court to enforce a settlement by including such language in a settlement agreement but not asking the court to retain jurisdiction. (Hagan Engineering, Inc. v. Mills, 115 Cal. App. 4th 1004, 1010, 9 Cal. Rptr. 3d 723 (3d Dist. 2003)) Rather, the parties should file a stipulation and proposed order either attaching a copy of the settlement agreement and requesting that the trial court retain jurisdiction under section 664.6, or a stipulation and proposed order signed by the parties noting the
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		settlement and requesting that the trial court retain jurisdiction under section 664.6, or a stipulation to a judgment of dismissal that expressly provides that the court retains jurisdiction to enforce the settlement agreement under section 664.6. The process need not be complex, but the process must be followed. (Mesa RHF Partners, L.P. v. City of Los Angeles, 33 Cal. App. 5th 913, 918, 245 Cal. Rptr. 3d 512, 515–516 (2d Dist. 2019))” § 23:76. Effect of party’s dismissal following settlement, Cal. Civ. Ctrm. Hbook. & Desktop Ref. § 23:76 (2023 ed.)
11	SESS, LLC vs. JG Companies, Inc. 2023-01336443	Plaintiff SESS, LLC Motion to Expunge Mechanics Lien ***OFF CALENDAR***
12	The Surface Pros vs. Kenvys Enterprises 01CC01440	Judgment Creditor Judgment Recovery Assistance, LLC Motion for an Order Establishing 3rd Party Liability Against 3rd Party Obligor, Midway Law Firm APC And/Or Marc Steven Applebaum Judgment Creditor Recovery Assistance, LLC’s motion pursuant to Code Civ. Proc. §701.020 for order establishing the liability of third parties Midway Law Firm and Marc Applbaum in the amount of \$7,500 for failure to comply with third party levy is granted. Judgment Creditor is awarded attorneys’ fees of \$2,975. Basic Law regarding Liability of Third Party Served with Levy When service is made on a third person, the levying officer (or registered process server) will request the person to either deliver the property or pay the debt levied upon or to provide a

		“garnishee's memorandum” stating reasons for not doing so. This memorandum must be mailed or delivered to the levying officer <i>within 10 days</i> after the request. Code Civ. Proc. § 701.030(a). The memorandum must be provided regardless of whether the levy itself is effective (e.g., where the property levied upon is the subject of a pending action or proceeding). Code Civ. Proc. § 701.030(a). There is no duty to provide a garnishee's memorandum if the third person (garnishee) has <i>fully complied</i> with the duty to pay or turn over the property levied upon—i.e., where all property described in the notice of levy has been delivered, and all amounts owed to the judgment debtor at the time of levy have been paid, to the levying officer. Code Civ. Proc. § 701.030(f). After entry of a money judgment, the judgment creditor may obtain a writ of execution requiring the levying officer to enforce the judgment. (§ 699.510, subd. (a); <i>Vineyard v. Sisson</i> (1990) 223 Cal.App.3d 931, 939, 272 Cal.Rptr. 914.) If property subject to levy is in a third party's possession, the levying officer serves a copy of the writ of execution and notice of levy on that person, who may not refuse to comply absent a showing of good cause. (§§ 700.040, subd. (a), 701.010.) A third party's failure to deliver property without good cause renders it directly liable to the judgment creditor for the lesser of the judgment debtor's interest in the property or debt, and the amount
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		required to satisfy the money judgment. (§ 701.020, subd. (a).) . . . <i>Wanke, Industrial, Commercial, Residential, Inc. v. AV Builder Corp.</i> (2020) 45 Cal.App.5th 466, 473. In the absence of a showing of “good cause”, a third person who fails to comply with the turnover and pay duties becomes <i>personally liable</i> to the judgment creditor. The creditor may file a motion under Code Civ. Proc. § 701.020 to enforce this liability. <i>See National Fin'l Lending, LLC v. Sup.Ct. (Brewer Corp.)</i> (2013) 222 Cal.App.4th 262, 272 (finding creditor's § 701.020 motion to impose liability on third party for failure to honor notice of levy was incident to underlying action and not separate proceeding that would support CCP § 170.6 peremptory challenge]). If a third person is required by this article to deliver property to the levying officer or to make payments to the levying officer and the third person fails or refuses without good cause to do so, the third person is liable to the judgment creditor for whichever of the following is the lesser amount: (1) The value of the judgment debtor's interest in the property or the amount of the payments required to be made. (2) The amount required to satisfy the judgment pursuant to which the levy is made. Code Civ. Proc. § 701.020(a).
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		The third person's liability to the judgment creditor continues until the property or debt levied upon is delivered or paid to the levying officer; <i>or</i> the property is released; <i>or</i> the judgment is satisfied or discharged. Code Civ. Proc. § 701.020(b). If liability to the judgment creditor is established, the court hearing the action may, in its discretion, require the third person to pay the costs and reasonable attorney fees incurred by the judgment creditor in the action. Code Civ. Proc. § 701.020(c). Application Judgment Creditor has presented a proof of service by the San Diego Sheriff's authorized agent attesting to service at the address shown on Third Parties' opposition. [Brady Decl. (ROA #272), Ex. A.] "It is presumed that official duty has been regularly performed." Evid. Code § 664. Further, "[i]t has been held that the filing of a proof of service creates a rebuttable presumption that the service was proper." <i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1441. "The return of a registered process server 'establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.' [Citation.]" <i>Fernandes v. Singh</i> (2017) 16 Cal.App.5th 932, 940.) "[A] declaration of non-service <i>if credited by the trial court</i> can rebut the presumption of proper service..." <i>Id.</i>, at p. 941 (emphasis in original [court declined to credit denial of service, expressly finding declaration to be "unpersuasive"].) The court finds Applbaum's declaration that Third Parties were not "properly" served with the writ
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	unpersuasive and finds that Judgment Creditor has established service of the writ. Similarly, the court finds the denial of Judgment Creditor's attempts to follow up on the writ, and denial of receipt of a federal express package with counsel's letter, does not persuasively rebut Judgment Creditor's showing. [See Compton Decl. (ROA #272), ¶¶ 3-9 and Exs. F-H.] Judgment Creditor has thus established that it served a notice of levy on Marc Applbaum and Midway Law Firm for money belonging to Judgment Creditor on 11/17/21 and at the time Midway had \$7,500 in funds belonging to Judgment Debtor in trust, which it did not turnover but instead returned to Judgment Debtor on 1/18/22. [Brady Decl. (ROA #272), ¶¶12-13, 15, 17-22 and Exs. A – E.] Indeed, Third Parties acknowledge the transfer. [See Opp. (ROA #306) at 2:7-9.] Third Parties rely on their prior argument that the judgment and assignment of it are void, but these arguments were previously rejected by the court. [ROA ##66, 94, 247.] In short, Marc Applbaum and Midway Law Firm have not disputed Judgment Creditor's showing or made any showing of good cause for failing to turn over the \$7,500 upon levy. They are thus liable for that amount. Code Civ. Proc. §701.020(a). Judgment Creditor seeks attorneys' fees in the amount of \$2,975. [See Compton Decl., ¶ 10.] Counsel's hourly rate of \$425 is reasonable. So is the 7 hours of attorney time he declares was spent on this matter. [<i>Id.</i>]
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